

		Here, Plaintiff argues that there is no real evidence that Proetti made the sweep at all (indeed there is no testimony from Mr. Proetti); the slip occurred in the produce section which is a self-serve and highly trafficked area requiring a heightened duty of inspection; and Defendant's authorities do not support granting the motion as a matter of law. Given these arguments, Plaintiff has sufficiently established an inference the condition did exist long enough for the owner to have discovered it, sufficient to go to the jury. At a minimum, it raises a triable issue of fact and as a result, the Motion is DENIED in its entirety. <i>Plaintiff to give notice.</i>
109	Nguyen vs. Nguyen, 24-01371446	<i>Off-calendar.</i>